

2:00 PM

LINE: 5

24-CIV-07657

RICHARD DONOVAN VS. RENNA HU, ET AL

RICHARD DONOVAN
RENN A HU

JACQUELINE M SIMONOVICH
PAUL T LLEWELLYN

**PLAINTIFF AND CROSS DEFENDANT RICHARD DONOVAN'S FOURTH AMENDNED NOTICE OF MOTION TO FILE
ADDITIONAL ATTORNEY FEE RECORDS UNDER SEAL**

TENTATIVE RULING:

For the reasons stated below, Plaintiff Richard Donovan's unopposed motion to file additional attorney-fee records under seal is **GRANTED IN PART**, limited to the confidential narrative portions of Exhibit A to the declaration of Jacqueline M. Simonovich supporting Plaintiff's reply on attorney's fees, as described below. The fee motion remains set for October 15, 2026. Non-opposition alone does not justify sealing. (Cal. Rules of Court, rules 2.550(d)–(e), 2.551(a).)

LEGAL STANDARD

Court records are presumed open unless confidentiality is required by law. (Cal. Rules of Court, rule 2.550(c).) A record may not be filed under seal without a court order, and the Court may not authorize sealing based solely on the parties' agreement, stipulation, or lack of opposition. (Cal. Rules of Court, rule 2.551(a); *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 597.) The Court may order a record sealed only if it expressly finds facts establishing that: "(1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).)

FINDINGS

The records lodged conditionally under seal on August 25, 2026 consist of attorney billing entries for August 1 through August 26, 2025. The Court finds that the entry narratives identifying litigation tasks, legal strategy, or confidential attorney-client communications in this pending action implicate an overriding interest in preserving the attorney-client privilege and protected legal work product. Disclosure of those particular narrative descriptions presents a substantial probability of prejudice to that interest while the litigation is active. (Cal. Rules of Court, rule 2.550(d)(1)–(3); *Los Angeles County Board of Supervisors v. Superior Court* (2016) 2 Cal.5th 282, 300.) These findings concern confidential content, not a categorical privilege for each date, timekeeper initial, hour, rate, or amount appearing on a bill.

SCOPE OF SEAL

Sealing is limited to the narrative descriptions, or portions of descriptions, that would disclose the protected information. The billing dates, timekeeper identifiers, hours, rates, and amounts must remain in the publicly filed redacted copy unless a separate, entry-specific finding establishes that disclosure of one of those fields would reveal protected information. This limited sealing is narrowly tailored; a publicly filed copy with only the protected text redacted is a less restrictive means than sealing the entire invoice. The Court finds no less restrictive means to protect the identified confidential narratives. (Cal. Rules of Court, rule 2.550(d)(4)–(5), (e)(1).)

ORDER

The Clerk shall maintain the lodged complete Exhibit A under seal as the confidential counterpart to the public redacted exhibit; the unredacted material shall be available to the Court and persons permitted by applicable law or further court order. This order, the register of actions, and all other records remain public. Plaintiff shall file, or confirm that the public file contains, a corresponding legible copy of Exhibit A showing all nonprotected information. The sealing order applies only to the material specifically identified above, and no subsequent public filing may disclose its sealed contents. (Cal. Rules of Court, rules 2.550(e), 2.551(e).)

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 6

25-CIV-06841

ESTATE OF HUNTER BERGNER, BY AND THROUGH SUCCESSOR IN INTEREST, PATRIC, ET AL
VS. SAN MATEO COUNTY, A PUBLIC ENTITY, ET AL

ESTATE OF HUNTER BERGNER, BY AND THROUGH SUCCESSOR IN INTEREST, DENISSE O. GASTELUM
PATRIC ADAM M STODDARD
SAN MATEO COUNTY, A PUBLIC ENTITY

DEFENDANTS' ANNA KEHLER, MELODEE LEGASPI-TAPANG, KIM MARTINEZ, PATRICIA MARTINEZ, SAN MATEO COUNTY, AND SHERIFF CHRISTINA CORPUS' MOTION TO COMPEL RESPONSES TO WRITTEN DISCOVERY; REQUEST THAT ADMISSIONS BE DEEMED ADMITTED; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the motion brought by the County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher is **GRANTED IN PART**. Because the notice also lists Sheriff Christina Corpus, whose appearance or representation by moving counsel is not established in the submitted memorandum, this order grants no affirmative relief on her behalf absent clarification of her participation and service at the hearing.

BACKGROUND

On December 3, 2025, Defendants served Plaintiffs with Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Production of Documents (Set One), Requests for Admission (Set One), and Requests for Statements of Damages. (Stoddard Decl., filed Apr. 22, 2026, Ex. A.) Plaintiffs' counsel requested and was granted two extensions of time to serve responses. (Id., Ex. B.) On February 10, 2026, Plaintiffs served unverified responses to the discovery requests but failed to serve responses to the Requests for Statements of Damages. (Id., Ex. C.)

Because unverified responses are tantamount to no responses, Defendants' counsel met and conferred with Plaintiffs' counsel and requested that Plaintiffs serve verified responses, without objections, by April 17, 2026. (Id., Ex. D.) During the meet-and-confer discussions, Defendants' counsel advised that Defendants would file a motion to compel verified, objection-free responses and seek monetary sanctions if Plaintiffs failed to comply. Plaintiffs' counsel agreed to serve verified responses by April 17, 2026, but failed to do so.

Although the motion was filed several months ago, it remains unopposed. There is no evidence before the Court that Plaintiffs have served verified, objection-free responses to any of the above-referenced discovery requests.